

Dated:

Subject : Appointment Letter

Dear

Welcome to Hero MotoCorp Ltd. We are pleased to appoint you in our Company as per the following terms and conditions:

Designation

Grade

Date of Joining :

Location

01. Remuneration:

You will be entitled to **Remuneration** as per the attached **Annexure-I**.

02. Location & Transferability:

Your initial posting will be at the location mentioned above. However, you are liable to be transferred at any time from the allocated work location, department, section, shift, factory, office to another work location, whether existing or to be set-up in future, whether situated in the same locality or outside as may be considered necessary.

03. Probation Period:

Your services will be on probation for a period of **06 (Six) months** from the date of joining. During the probationary period, your services are liable to termination, upon giving 1 (One) months' notice or by payment of basic salary in lieu thereof by either party. Any relieving, before a period of 1 (One) month by payment of basic salary on employee request, will be subject to Hero MotoCorp Ltd.'s Management discretion. Your services will be deemed to be confirmed on successful completion of the probation period unless explicitly communicated as otherwise in writing by an authorized representative of Hero MotoCorp Ltd.

04. Business/Working Hours:

You are required to follow the working hours as applicable to you at the location of your posting. You may also be required to work in shifts and /or in extended working hours, if required as per business need, in accordance with the policy of the Company.

05. Code of Conduct:

- a. You will abide by high ethical standards of Hero MotoCorp Ltd, and shall follow the Code of Conduct, as defined by the Organization.
- b. You will abide and be governed by all rules, regulations and orders of the Company that are framed / modified and may be applicable to your category of employees from time to time.
- c. You will carry out all instructions of your superiors with regard to your work. You will carry out diligently and earnestly all duties or work that may be assigned to you from time to time.
- d. You shall at all times uphold good image of the Company and maintain upright discipline and not indulge in any activity which brings disrepute to the Company.
- e. Post joining it is mandatory to go through Company's Code of Conduct and comply with the same. The Code of Conduct is available on intranet under the Policies section.

06. Dual Employment/Non-Compete:

While you are in the employment of the Company; you undertake not to be engaged in any other employment /assignment part-time/full time or gratis, business or hold any office of profit or accept any other emoluments which shall be in conflict with the interest of the Company. You will not accept any mandates as Director, Managing Director or Consultant or in any other capacity in any companies, undertakings or establishments that compete with the Company or its subsidiaries.

07. Non-Compete Post-Employment:

You will neither take up any employment nor get engaged in other business relationship with any Organization which is engaged in the similar business of the Company for a period of one year from the date of leaving the services of the Company, without prior consent from the Management.

08. Non-Solicitation:

While you are in the employment of the Company you will not solicit, induce, encourage, or participate in soliciting, inducing, or encouraging any employee, business associate or consultant of the Company to terminate his or her relationship with the Company or to work in any capacity for any person or entity other than the Company.

09. Confidentiality:

During your tenure in the Organization you will come across various information related to the Company. All such information shall be treated as "Confidential Information" unless the same

are in public domain. You are expected to maintain highest order of confidentiality with respect to the same and will not divulge or communicate to any person, firm or organization any such information unless required to perform your duties.

The confidential information amongst other may include information/data relating to Hero MotoCorp Ltd. and its subsidiaries with respect to products, designs, technology, technical know-how, product features, launch details, manufacturing processes, research, statement of intent and

other aspects which constitute Intellectual Property Rights imparted and/ or shared in terms of ideas, concepts, designs, drawings, specifications, techniques, models, diagrams, scientific procedures and/or other data as well as other confidential matters of business, relating to customers, suppliers, employees, business partners, stakeholder, technology partner, business plans, marketing, materials, pricing and/or other business related information/data. The information shall also include unpublished information which needs to be shared with regulatory bodies like Stock Exchanges, SEBI etc., confidential information related to customer, technology partners, vendors, channel partner or stakeholders. It may also include confidential information related to employee's personal information, compensation and performance data.

The confidentiality obligations as required shall remain in effect without regard to duration.

10. Company Policies:

You will be governed by the policies /rules and regulations of the Company as shall be in force from time to time and as may be applicable to you.

11. Severability:

The provisions of this letter are severable and if any provisions are found to be invalid or unenforceable in whole or in part, the remainder will remain valid and enforceable.

12. IP Clause:

All Intellectual Property that is produced/created by you during the employment period with the Company shall be on 'work for hire' basis for the Company or any of its subsidiaries or affiliates. "Intellectual Property" includes any ideas, inventions, conceptions, discoveries, processes, compounds, applications, vehicle layouts, devices, semiconductor layout design, formulae, patents, utility models, trade secrets, trade-marks, copyrights, designs, whether registered or not, whether registrable or not, that you may make, solely or jointly with others, in the course of your employment with the Company (Term) that may or may not relate to any or all systems, services, processes and products manufactured or marketed or leased or developed by the Company. All Confidential Information and all Intellectual Property shall remain the sole property of the Company. You shall not acquire any proprietary interest in any Confidential Information or Intellectual Property developed or acquired during the Term with the Company. You will assign to the Company your entire right, title and interest in any and all Intellectual Property Rights including the rights you may acquire by operation of law or otherwise in or to any Confidential Information or Intellectual Property. You will perform all necessary acts and execute such documents / forms in such format as and when may be required by the Company, without expense to you, which in the judgment of the Company may be necessary or desirable to secure to the Company full right title and interest in the Intellectual Property Rights .

13. Cessation of Services:

- a. You will retire from the service of the Company on attaining the age of superannuation as per policy of the Company.
- b. After successful completion of probation period, your services are liable to termination, upon giving 3 month notice or by payment of basic salary in lieu thereof by either party. However Management shall have absolute right to not to accept your request of relieving before three months even if you choose to compensate in lieu of shortfall.

- c. Your services may be terminated by the Company without any notice for any of the following reasons:
- i. If in the opinion of the Company you are found to have committed a serious breach of integrity, found guilty of misconduct or material negligence of any of your duties or obligations;
 - ii. If any declaration/document given by you at the time of your Interview / Selection or thereafter is found to be wrong/false or you are found to have willfully suppressed any material information;
 - iii. Unauthorized absence or absence without permission from the duty for a continuous period of 10 working days.

14. Statutory Dues /Tax

You will personally be liable for the payment of income tax as per your remuneration to the income tax authorities including such statutory dues/taxes. The Company shall deduct the taxes as per the applicable law from the amount paid to you. If new taxes are levied by the government your liability for the payment of the same likewise, will be presumed to be accepted by you.

15. Governing Law and Jurisdiction:

The terms of your employment will be governed and construed in accordance with the laws of India and the Courts of Delhi will have jurisdiction on the same.

16. General Conditions:

- a. Your date of birth mentioned in the Matriculation/Higher Secondary Certificate/Passport will be deemed to be the conclusive proof of your date of birth.
- b. You shall keep the Management posted with any change in your postal address or any other information provided at the time of joining, otherwise the last information communicated by you to the Company or available in the Company's record will be deemed to be your 'current' information for the purpose of all communication from the Management.
- c. You are liable for medical check-up at all times by a registered Medical Practitioner as may be specified by the Company.

- d. In the event of your resignation, you shall return all Official and Company related documents back to the Company, whether in physical or soft form and Company assets given to you for performing your duties
- e. All the joining expenses incurred by the Company i.e. Relocation (Packers & Movers), Notice pay buy-out (if applicable), Bond buy-out (if applicable), Lodging/ Hotel expenses, Joining Travel etc. will be recovered from you in the event of your voluntary termination within 18 months of joining Hero MotoCorp Ltd.
- f. Employee at any time, including after his termination or separation from Hero MotoCorp Ltd, will perform all the necessary acts and execute the necessary documents and will extend his/her cooperation willfully as may be required by the Company to secure its interests in the IPRs and its subsistence.
- g. You will be required to furnish the self-attested copies of the following Certificates / Documents within three days of joining:
 - Copies of certificate of Educational Qualifications & Experience
 - Income Tax / Salary Statement, if any from your previous employer

The above terms and conditions are based on the Company's policy, procedures and other rules currently applicable and are subject to amendments and adjustments from time to time. In case, you need any further clarification, please feel free to contact your Human Resources Business Partner.

In case, the above terms & conditions are acceptable to you, please sign the duplicate copy of this Letter of Appointment as a token of your acceptance.

All the best and wishing you success in your new assignment.

Thanking you,

Yours sincerely,

For **Hero MotoCorp Limited**

Rachna Rahul Kumar
Chief Human Resources Officer

******As an Organisation Hero MotoCorp remains committed to Equal Employment Opportunity******

Page: 5 / 6

Total Remuneration Statement**Annexure - I**

EC Code :

Effective From :

Name :

Grade :

Rs. / p.a.**1. Cash Compensation**

Basic

HRA

Special Allowance

Education Allowance

Conveyance/Veh. Operating Expense

Dress Maintenance

Medical Allowance

LTA

Meal Coupons

Telephone Expenses

Other Facilities

Bonus/ Ex-gratia

2. Retirals

PF

Superannuation

NPS

Gratuity

Fixed Compensation**(1+2)****3. Target Variable Pay****Cost to Company****(1+2+3)****4. Benefits**

GPA(Coverage)

GLIC (Coverage)

Household Insurance (Coverage)

Mediclaime Insurance (Coverage)

5. Location Benefits (valued)

Special HRA

Disclaimer:

- 1.This statement is checked for its accuracy. In case of any discrepancy, Company records will supersede this information.
- 2.Individual compensation information is personal and confidential. Sharing of this information with anyone within or outside the Organization will be considered as violation of Company values and code of conduct.
- 3.Tax deduction at source will be done as per applicable tax laws.